

Can the Ministry of Labour Demand Your List of Expatriate Staff Under Executive Order 5?

Wholesome Legal House Insights | Reviewed and updated July 2026

Companies that employ expatriate professionals sometimes receive requests from the Ministry of Labour and Employment for a list of their foreign staff, framed with reference to "Executive Order 5." Since an executive order, by its nature, binds government agencies rather than private companies, it's worth understanding exactly what authority the Ministry is actually exercising when it makes that request.

What Executive Order 5 Is — and Isn't

An executive order is a directive from the President to Federal Ministries, Departments and Agencies (MDAs) on how to carry out their official duties; it does not, by itself, impose obligations on persons or companies outside government. Executive Order 5, signed in February 2018 pursuant to the President's executive powers under Section 5(1) of the 1999 Constitution, is formally titled the Presidential Executive Order for Planning and Execution of Projects, Promotion of Nigerian Content in Contracts and Science, Engineering and Technology. In substance, it is a local-content directive: it instructs government MDAs to prioritise indigenous professionals, Nigerian companies, and Made-in-Nigeria goods and services in the planning, design and execution of government projects, and it is deliberately sector-neutral rather than limited to oil and gas, where local-content rules already existed.

Because it is a directive to government officers, non-compliance by an MDA is sanctioned through the Public Service Rules and applicable public procurement and professional practice laws — not through any penalty regime aimed at private companies, because Order 5 does not create one.

So Where Does the Ministry's Authority to Ask Come From?

Order 5 directs MDAs to ensure that professionals practising in Nigeria — Nigerian and foreign alike — are duly registered with the relevant Nigerian regulatory bodies, and that foreign professional certificates are domesticated with those bodies before being considered for any contract award or employment. The Ministry of Labour, as the MDA responsible for labour administration, can lawfully request a list of professionals (Nigerian or expatriate) from a private company in order to carry out exactly that verification function — confirming that the professionals working with the company are properly registered, and that expatriate staff's foreign certificates have been domesticated. The private company's obligation to respond arises from the Ministry's ordinary regulatory and labour-administration powers, not from Order 5 itself imposing a direct duty on the company — a distinction worth understanding even though the practical result (the Ministry can validly ask, and the company should be prepared to answer) is the same.

It's also worth noting that Order 5 separately prohibits the Ministry of Interior from issuing visas to foreign workers whose skills are readily available within Nigeria — relevant context for companies planning to bring in expatriate hires for roles that could plausibly be filled locally.

The Practical Takeaway

Companies employing expatriate professionals should maintain up-to-date records showing: registration of relevant staff (Nigerian and foreign) with the appropriate Nigerian professional regulatory bodies, and domestication of any foreign professional certificates held by expatriate staff. This is especially important for companies bidding on or executing government contracts or nationally significant projects, where scrutiny under this framework is most likely, but the underlying registration and domestication obligations are good practice regardless of whether a specific request from the Ministry is anticipated.

A note on currency of the law

Executive Order 5 remains in force as at 2026, and Nigeria's local-content push under it has continued to gain practical traction — the Nigerian Content Development and Monitoring Board reported local content implementation reaching 61% in relevant sectors as of late 2025, alongside tightened certification guidelines introduced in December 2025.

A bill — the Nigerian Content in Programmes, Contracts, Engineering, Science, Technology and Innovation (Establishment) Bill, 2025 — would convert Order 5's local-content and visa-restriction principles into a standing Act of the National Assembly, giving the framework direct statutory force rather than resting solely on executive directive. The bill had progressed through the legislative process as of 2025 but had not yet received presidential assent as at the time of writing, so Executive Order 5 continues to be the operative basis for now.

This article is published by Wholesome Legal House for general information purposes only. It is not legal advice, and no solicitor-client relationship arises from reading it. The facts of any specific matter may alter the analysis. For advice on a particular situation, please contact us.